Title 41—PUBLIC CONTRACTS AND PROPERTY MANAGEMENT

Chapter 12B—Coast Guard, Department of Transportation

[CGFR 69-26]

PART 12B-3—PROCUREMENT BY NEGOTIATION

Subpart 12B-3.1—Use of Negotiation

UNSOLICITED CONTRACT PROPOSAL

On March 11, 1969, Coast Guard Procurement Regulations concerning negotiated contracts were published in the FEDERAL REGISTER (34 F.R. 5064). These regulations implement and supplement the Department of Transportation Procurement Regulations as authorized by 41 CFR 12-1.008. Since the publication of these regulations, it has been noted that the provisions of § 12B-3.153-54 are adequately covered by the provisions of § 12B-3.153-53. The purpose of this document is to revoke § 12B-3.153-54. This change relates to Departmental management, procedures and practices. Accordingly, notice and public procedure thereon is unnecessary.

In Subpart 12B-3.1, § 12B-3.153-54 is revoked.

(Sec. 205(c), 63 Stat. 390, as amended, secs. 2301-2314 (ch. 137), 70A Stat. 127-133; 40 U.S.C. 486(c), 10 U.S.C. 2301-2314; 41 CFR 12-1.003)

Effective date. This amendment shall become effective upon publication in the FEDERAL REGISTER.

Dated: April 15, 1969.

P. E. TRIMBLE,
Vice Admiral, U.S. Coast Guard, Acting Commandant.

[F.R. Doc. 69-4690; Filed, Apr. 18, 1969; 8:50 a.m.]

Chapter 50—Public Contracts, Department of Labor

PART 50-201—GENERAL REGULATIONS

Minimum Age Requirements Under Walsh-Healey Public Contracts Act

On October 5, 1968, a notice of proposed rule making regarding an amendment to § 50-201.1 of Title 41, Code of Federal Regulations, was published in the FEDERAL REGISTER (33 F.R. 14971). All relevant matter presented by interested persons has been considered.

Pursuant to section 6 of the Walsh-Healey Public Contracts Act (41 U.S.C. 40) and Secretary of Labor's Order No. 3-69 (34 F.R. 1203) and in accordance with the national policy against discrimination because of sex expressed in title VII of the Civil Rights Act of 1964 (42 U.S.C. 2000e—2000e-15) and Executive Order No. 11375 (32 F.R. 14303), § 50-201.1 of Title 41, Code of Federal Regulations, is amended in the manner indicated below. Under the same authority, § 50-201.1 is also amended to delete a reference to the effective date of the Walsh-Healey Public Contracts Act since the reference is no longer necessary for the guidance of the public, and in addition § 50-201.105 of the same title is amended to reflect the changes made in § 50-201.1 and to provide a current reference to the Department of Labor's child labor regulations under the Fair Labor Standards Act.

The amendments shall be effective upon publication in the FEDERAL REGISTER.

Part 50-201 of Title 41, Code of Federal Regulations, is amended as follows:

1. Section 50-201.1 is amended as follows:

§ 50-201.1 Insertion of stipulations.

Except as hereinafter directed, in every contract made and entered into by an executive department, independent establishment, or other agency or instrumentality of the United States, or by the District of Columbia, or by any corporation all the stock of which is beneficially owned by the United States, for the manufacture or furnishing of materials, supplies, articles, and equipment, the contracting officer shall cause to be inserted or incorporated by reference in such invitation or the specifications and in such contract, the following stipulations:

* * * * *

(d) No person under 16 years of age and no convict labor will be employed by the contractor in the manufacture or production or furnishing of any of the materials, supplies, articles, or equipment included in the contract.

* * * * *

2. Section 50-201.105 is amended to read as follows:

§ 50-201.105 Protection against unintentional employment of underage minors.

An employer shall not be deemed to have knowingly employed an underage minor in the performance of contracts subject to the Act if, during the period of the employment of such minor, the employer has on file an unexpired certificate of age issued and held pursuant to regulations issued by the Secretary of Labor under section 3(1) of the Fair Labor Standards Act of 1938 (29 CFR 1500.121), showing that such minor is at least 16 years of age.

(Sec. 6, 49 Stat. 2038, as amended; 41 U.S.C. 40)

Signed at Washington, D.C., this 9th day of April 1969.

BEN P. ROBERTSON,
Acting Administrator, Wage and Hour and Public Contracts Divisions.

[F.R. Doc. 69-4667; Filed, Apr. 18, 1969; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4610]

[New Mexico 4103]

NEW MEXICO

Partial Revocation of Executive Orders No. 6276 and No. 6583

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Orders No. 6276 of September 8, 1933, and No. 6583 of February 3, 1934, withdrawing lands in New Mexico to aid the State in making exchange selections, are hereby revoked so far as they affect the following described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 22 S., R. 4 W.,
Sec. 3, lot 1.
T. 21 S., R. 7 W.,
Sec. 3, lots 5, 6, 11, 12, and SW¼;
Sec. 4, lots 5, to 12, inclusive, and S½;
Sec. 6, lots 4, 5, 6, SW¼NE¼, and SE¼NW¼;
Sec. 8, E½W½ and SE¼;
Sec. 17, NE¼ and E½W½;
Sec. 20, E½SW¼;
Sec. 29, NE¼ and E½NW¼.
T. 22 S., R. 7 W.,
Sec. 5, lots 2 and 3;
Sec. 6, lots 1, 2, 7, 8, and NE¼;
Sec. 7, N½SW¼;
Sec. 8, S½NE¼.
T. 21 S., R. 8 W.,
Sec. 5, lots 1, 2, 3, 4, N½N½, SW¼NE¼, and S½NW¼.
T. 22 S., R. 8 W.,
Sec. 1, lots 5, 6, and S½SW¼;
Sec. 4, lots 5, 6, 7, 8, and S½S½;
Sec. 5, lots 9, 10, 11, 12, and S½S½;
Sec. 6, lots 1, 2, 3, 4, S½N½, W½SW¼, and E½SE¼;
Sec. 7, E½;
Sec. 8, W½;
Sec. 10;
Sec. 11, E½, E½W½, and NW¼NW¼;
Sec. 12, SW¼;
Sec. 13, N½NW¼, W½SW¼, SE¼SW¼, and SW¼SE¼;
Sec. 14, N½NE¼, SE¼NE¼, W½, and SE¼;
Sec. 15;
Sec. 17, E½ and NW¼;
Sec. 19, NE¼ and SW¼;
Sec. 20, N½NE¼, SW¼NE¼, NW¼, and NW¼SE¼;
Sec. 21, N½N½;
Sec. 22, N½ and SE¼;
Secs. 23 and 24;
Sec. 26, W½;
Sec. 27;
Sec. 30, NW¼;
Sec. 35, NW¼.
T. 22 S., R. 9 W.,
Sec. 3, NW¼SW¼;
Sec. 4, NE¼;
Sec. 6, NW¼NE¼;
Sec. 7, SW¼NE¼ and SE¼;
Sec. 15, W½E½ and E½W½;
Sec. 19;
Sec. 20, E½NE¼, SW¼, and W½SE¼;

Sec. 21;
Sec. 22, W½E½, W½, and E½SE¼;
Sec. 23, S½;
Sec. 24, S½;
Secs. 25 and 26;
Sec. 27, E½NE¼ and W½NW¼;
Sec. 28, N½;
Sec. 29, W½NW¼;
Sec. 30, lots 1, 2, NE¼, and E½NW¼;
Sec. 35, W½NE¼ and E½NW¼.
T. 7 S., R. 14 W.,
Secs. 25 and 35.

The areas described contain 18,988.65 acres in Dona Ana, Grant, and Luna Counties.

2. At 10 a.m. on May 17, 1969, the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law and procedures. All valid applications received at or prior to 10 a.m. on May 17, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands will be open to location for nonmetalliferous minerals at 10 a.m. on May 17, 1969. They have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, N. Mex.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 11, 1969.

[F.R. Doc. 69-4645; Filed, Apr. 18, 1969; 8:46 a.m.]

[Public Land Order 4616]

[Washington 05833]

WASHINGTON

Powersite Cancellation No. 240; Partial Cancellation of Powersite Classification No. 349

By virtue of the authority contained in the act of March 3, 1879 (20 Stat. 394; 43 U.S.C. 31), and 1950 Reorganization Plan No. 3 (64 Stat. 1262; 5 U.S.C. 133z–15, note), and in section 24 of the act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended, and pursuant to the finding of the Federal Power Commission in DA–203–Washington, it is ordered as follows:

1. The departmental order of June 22, 1944, creating Powersite Classification No. 349, is hereby canceled so far as it affects the following described land:

WILLAMETTE MERIDIAN

T. 27 N., R. 23 E.,
Sec. 9, lot 3.

The area described contains 32.80 acres in Chelan County.

The land is located along the right bank of the Columbia River in the north-central part of Washington. A portion of lot 3 lies within the boundary of Project No. 2145, licensed to Public Utility District No. 1 of Chelan County. Other portions are withdrawn for transmission line Project No. 587 and are open by reason of the general determination of April 17, 1922, under section 24 of the Federal Power Act.

2. At 10 a.m. on May 20, 1969, the land shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on May 20, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Portland, Oreg.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 14, 1969.

[F.R. Doc. 69-4646; Filed, Apr. 18, 1969; 8:46 a.m.]

[Public Land Order 4617]

[Arizona 1958]

ARIZONA

Partial Revocation of Administrative Site Withdrawal

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 8598 of November 18, 1940, reserving lands as an administrative site for the Cabeza Prieta Game Range, is hereby revoked so far as it affects the following described lands:

GILA AND SALT RIVER MERIDIAN

T. 12 S., R. 6 W.,
Sec. 15, N½NE¼NW¼ and SW¼NE¼NW¼.

The areas described aggregate 30 acres in Pima County.

The land is located north of Ajo, Ariz. Elevation ranges from 1,700 to 1,759 feet. Soils are rocky and gravelly. Vegetation is typical Sonoran Desert type consisting of various cacti, mesquite and palo verde, creosote bush, and a few annual grasses.

2. At 10 a.m. on May 20, 1969, the lands shall be open to operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law and procedures. All valid applications received at or prior to 10 a.m. on May 20, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing. The lands have been open to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Phoenix, Ariz.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 14, 1969.

[F.R. Doc. 69-4647; Filed, Apr. 18, 1969; 8:46 a.m.]

[Public Land Order 4618]

[Fairbanks 017903]

ALASKA

Partial Revocation of Air Navigation Site No. 16

By virtue of the authority contained in section 4 of the Act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. Air Navigation Site Withdrawal No. 16, Alaska, of October 24, 1958, as corrected November 14, 1958, which withdrew land for use of the Civil Aeronautics Administration, now the Federal Aviation Administration, is hereby revoked as to the following described lands:

BETHEL AREA

Parcel No. 1: From the northwest corner of the State of Alaska, Division of Aviation, Tract 2, at coordinates N. 105,369.46 E. 108,672.26 (U.S.C. and G.S. "Bethel" being the origin of coordinates at N. 100,000 E. 100,000), which is the true point of beginning; thence N. 23°30' E. 15,840 feet; thence S. 66°30' E. 4,000 feet; thence S. 23°30' W. 15,840 feet; thence N. 66°30' W. 4,000 feet; containing approximately 1,454.55 acres.

The land consists of level Alaska Tundra located about 2 miles west of the town of Bethel.

2. The lands are withdrawn by Public Land Order No. 4582 of January 17, 1969, for the determination and protection of the rights of the native Aleuts, Eskimos, and Indians of Alaska. They will be open to location for metalliferous minerals at 10 a.m. on May 20, 1969.

Inquiries concerning the lands should be addressed to the Manager, Fairbanks District and Land Office, Fairbanks, Alaska.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 14, 1969.

[F.R. Doc. 69-4648; Filed, Apr. 18, 1969; 8:47 a.m.]

[Public Land Order 4619]

[New Mexico 5802]

NEW MEXICO

Partial Revocation of Executive Order No. 6583

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 6583 of February 3, 1934, which withdrew lands in New Mexico to aid the State in making exchange selections, is hereby revoked so